

25STCP04647 25STCP04647

County: los-angeles

Division: Civil Law and Motion

Department: 509

Hearing date: 2026-07-21

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C509%2C07%2F21%2F2026

Source SHA-256: 6f11b5a4af58e0dab201ed1dc337767092dd81be33ea82e296e6cc97cd7fd12e

Case Number: 25STCP04647 Hearing Date: July 21, 2026 Dept: 509

Twomagnets, LLC v. Palos Heights Rehabilitation, LLC

PETITION TO CONFIRM ARBITRATION AWARD

MOVING PARTY: Petitioner Twomagnets, LLC

RESPONDING PARTY(S): None.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Petitioner Twomagnets, LLC (Petitioner) brings this action to confirm an arbitration award against Palos Heights Rehabilitation, LLC (Respondent) arising from a contractual dispute. Petitioner attaches a final arbitration award issued by Charles T.C. Compton dated July 28, 2025.

On December 2, 2025, Petitioner filed this action.

On May 20, 2026, this matter originally came to hearing. This Court continued this motion and required Petitioner to personally serve Respondent.

On May 28, 2026, Petitioner served "Dawn Lisante - Administrative Assistant" at the address for Respondent's agent for service of process. (See 6/1/26 Proof of Service.)

No opposition was filed.

TENTATIVE RULING:

Petitioner's Petition to Confirm Arbitration Award is GRANTED.

Petitioner is ordered to file and serve a [Proposed] Judgment within 15 days incorporating the Arbitrator's Award, and as consistent with this ruling.

Moving party to give notice, unless waived.

DISCUSSION:

Petition to Confirm Arbitration Award

A. Legal Standard

Any party to an arbitration may petition the court to confirm an arbitration award. (Code Civ. Pro. § 1285.) If a petition to confirm an arbitration award is duly served and filed, the court must confirm the award as made, unless the court corrects or vacates the award pursuant to a response to the petition or a petition to correct or vacate the award. (Code Civ. Pro. § 1286; *Valsan Partners Limited Partnership v. Calcor Space Facility, Inc.* (1994) 25 Cal.App.4th 809, 818 [no authority to alter terms of award absent petition to correct].)

A petition to confirm an arbitration award must set forth the substance of or attach the arbitration agreement, include the name of the arbitrator, and attach a copy of the award and the written opinion of the arbitrator, if any. (Code Civ. Pro. § 1285.4.) The petition must be served no earlier than 10 days, but no later than 4 years, after service of the award on the petitioner. (Code Civ. Pro. §§ 1288, 1288.4.)

The petition, written notice of the time and place of the hearing on the petition, and any other papers upon which the petition is based must be served in the manner provided in the arbitration agreement for service of such petition and notice. (Code Civ. Pro. § 1290.4(a).) If the arbitration agreement does not specify the required manner of service and the person being served has not yet appeared in the proceeding and has not yet previously been served, then service of the petition within the State must be made in the same manner as service of a summons and complaint pursuant to Code of Civil Procedure, section 415.10 et seq. (Code Civ. Pro. § 1290.4(b)(1).) At least 10 days' notice of the date set for the hearing on the petition must be given. (Code Civ. Pro. § 1290.2.)

B. Analysis

Petitioner seeks to confirm the arbitration award following binding arbitration between the parties.

a. Proof of Service

As an initial matter, Petitioner's service is sufficient. "A summons may be served on a person outside this state in any manner provided by this article." (Code Civ. Pro., § 416.10.) "Summons may be served on a corporation by delivering a copy of the summons and the complaint ... [t]o the person designated as agent for service of process." (Code Civ. Pro., § 416.10.) "In lieu of personal delivery of a copy of the summons and complaint to the person to be served as specified in Section 416.10, ..., a summons may be served by leaving a copy of the summons and complaint during usual office hours in the person's office . . . , with the person who is apparently in charge thereof, and by thereafter mailing a copy of the summons and complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left." (Code Civ. Pro., § 415.20, subd. (a).)

Here, Petitioner served the required documents on the agent's administrative assistant at the same address as Respondent's agent for service of process. (See 6/1/26 Proof of Service.) The documents were mailed to the same address on May 29, 2026. (Id. at p. 3/4.) Service was therefore completed on June 8, 2026. (Code Civ. Pro., § 415.20, subd. (a).) Respondent has been adequately served with the petition in a timely manner.

b. Merits of the Instant Motion

On July 28, 2025, the arbitrator issued an award in Petitioner's favor, finding Respondent breached the parties' contract and caused damages in the amount of \$161,960.89, plus interest at the contractual rate of 1.5% per month commencing September 9, 2024. (Bloom Decl. Exh. B.) The arbitrator served the award on the parties electronically on July 31, 2025. (Ibid.) On December 2, 2025, Petitioner filed this motion to confirm the award and served Respondent via mail on January 14, 2026.

Here, Petitioner has provided the arbitration agreement, the name of the arbitrator, and the Arbitration Award. (Code Civ. Pro. § 1285.4.) The petition has also been served no earlier than 10 days, but no later than 4 years, after service of the award on the petitioner. (Code Civ. Pro. §§ 1288, 1288.4.) There is no opposition.

Accordingly, Petitioner's Petition to Confirm Arbitration Award is GRANTED.

C. Attorneys' Fees

Petitioner further requests \$11,319 in attorneys' fees, and an additional \$575.90 in costs in this action to enforce the arbitration award only. [FN 1] (Bloom Decl. ¶¶ 13-15.) The Agreement states that Respondent shall "reimburse Marketplace for all reasonable costs incurred in collecting any late payments, including, without limitation, attorneys' fees and collection agency fees." (Jhunhunwalla Decl. ¶ 9, Ex. A, at § 3.2.5).

Petitioner seeks reimbursement of fees of attorneys Aaron Bloom, and Chinelo N. Ikem. Bloom attests "[m]y hourly billing rate was \$785 in 2025 and \$845 in 2026. Ms. Ikem's hourly billing rate was \$535 in 2025 and \$585 in 2026." (Bloom Decl. ¶11.)

Bloom attests to spending 6.8 hours in this petition with Ikem spending 8.7 hours with an anticipated 1.5 hours for a combined 17 hours bringing this instant petition. (Bloom Decl. ¶13.) Although, upon a cursory review, the claimed fees appear to be somewhat excessive, by failing to oppose, Respondent has not formally challenged the reasonableness of Petitioner's attorney's fees or costs. It was their burden to do so. (See, e.g., Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488 ["[I]t is the burden of the challenging party to point to the specific items challenged [within the moving party's verified billing invoice], with a sufficient argument and citations to evidence"].

As a result, the request for attorney's fees is GRANTED, as requested, in the amount of \$11,894.9.

IT IS SO ORDERED.

Dated: July 21, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - The underlying arbitration did not award Petitioner their attorneys' fees and costs. Nonetheless, an award of attorney's fees and costs are allowed for the filing of this Petition.

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.